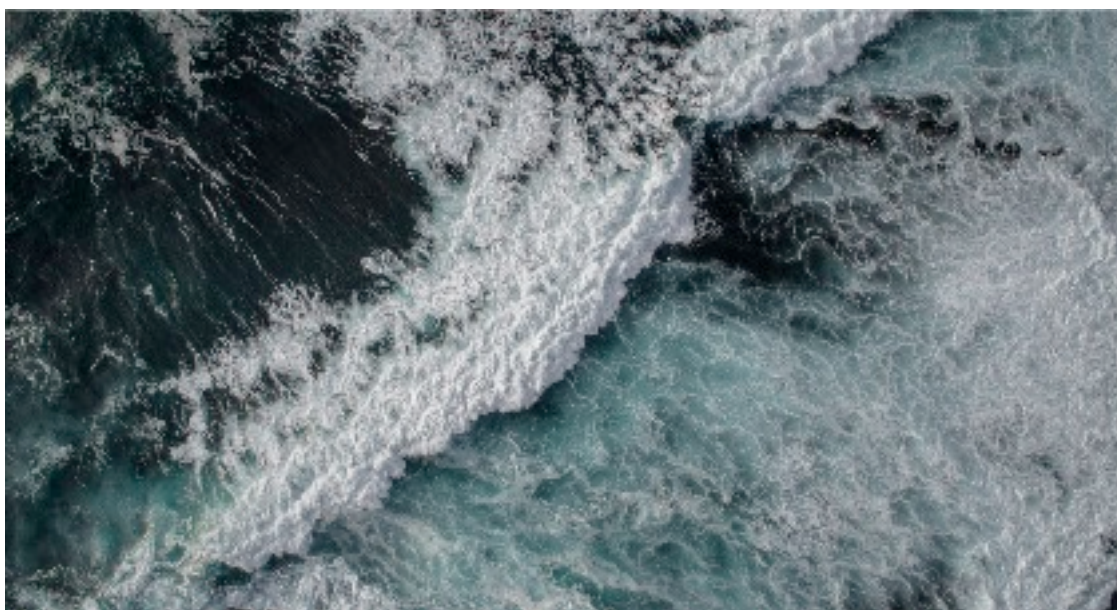


Summary of High-Level Expert Meeting

**Building a Strong High Seas Treaty:
What is the Role for Regional Ocean Governance?**

Hosted by Germany, the Abidjan Convention Secretariat,
the Secretariat of the Permanent Commission for the South Pacific
and the STRONG High Seas Project

New York, USA, 8 September 2018



Background

Covering about half the planet's surface, marine areas beyond national jurisdiction (ABNJ) host considerable biodiversity and deliver important ecosystem services. In September 2018, States convened the first meeting of an intergovernmental conference (IGC) at United Nations headquarters in New York to begin negotiating an international legally binding instrument (ILBI) for the conservation and sustainable use of marine biodiversity in these areas.

Held during the first meeting of the IGC, the High-Level Expert Meeting on the topic, *"Building a Strong High Seas Treaty: What is the Role for Regional Ocean Governance?"*, brought together over 60 participants in an informal setting to discuss the role and contribution of regional and sectoral ocean governance in developing and underpinning the implementation of a strong high seas agreement.

Resources

Photos available at:

- <https://www.prog-ocean.org/high-level-expert-meeting-building-a-strong-high-seas-treaty-what-is-the-role-for-regional-ocean-governance/>

Presentations and supplementary materials available at:

- <https://cloud.iass-potsdam.de/index.php/s/EmTNqPkdnXP7wWt>



Opening session

In opening the meeting, **Sebastian Unger** (IASS) introduced the STRONG High Seas project and set the scene for the meeting.

Guido Genrich (German Federal Foreign Office) stressed the support of the German government for the STRONG High Seas project and for the development of an effective new instrument on the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction.

Abou Bamba (Abidjan Convention Secretariat) and **Méntor Villagómez Merino** (Secretariat of the Permanent Commission of the South Pacific - CPPS) expressed the interest of their respective regions in developing a high seas treaty and building the capacity of their member States to contribute to management of resources in ABNJ.



Guido Genrich (German Federal Foreign Office) and Abou Bamba (Abidjan Convention Secretariat) welcome participants.

Session one

Regional governance of ABNJ: Lessons learnt & challenges

In the first substantive session of the meeting, **Julien Rochette** (IDDRI), moderated a discussion of ongoing regional efforts to strengthen management of ABNJ.

Mariana Blanco (MarViva Foundation) presented ongoing efforts to strengthen management of the Costa Rica Thermal Dome (CRTD), a dynamic marine ecosystem straddling the high seas and the exclusive economic zones (EEZs) of coastal States off the western coast of Central America.

Richard Cronin (OSPAR Commission) described the pioneering efforts of OSPAR to develop coordination and cooperation in the North East Atlantic, highlighting the need for open dialogue and trust building between parties.



*Mariana Blanco (MarViva Foundation)
describes the unique features of the Costa Rica Thermal Dome.*

Abou Bamba (Abidjan Convention Secretariat) noted that Abidjan Convention contracting parties recognise that sustainable management of their EEZ's is not possible without considering the high seas, but that the Convention does not have a formal mandate in ABNJ. He highlighted that parties are therefore taking a step-by-step approach, establishing a working group to explore different options for engaging in these issues and by participating in various international projects.

Ruth Fletcher (UNEP-WCMC) presented the preliminary results of a review of area-based planning tools conducted under the auspices of the FAO/UNEP ABNJ Deep Seas Project, highlighting the challenges and options for cross-sectoral cooperation under current governance frameworks.

Session two

Underpinning a high seas treaty through regional & sectoral governance

In the second session, participants turned their focus to how regional and sectoral governance mechanisms could support an effective international instrument.

Kristina Gjerde (IUCN) provided a recap of the challenges for effective governance within the existing fragmented framework, highlighting the need for overarching principles and objectives to ensure the consideration of biodiversity concerns into existing sectoral management processes. She also presented the newly published STRONG High Seas policy brief, 'Conservation and Sustainable Use of Marine Biodiversity in Areas Beyond National Jurisdiction: Options for Underpinning a Strong Global BBNJ Agreement through Regional and Sectoral Governance'.

Glen Wright (IDDRI) provided some food for thought on integrating existing mechanisms into a new agreement, with fisheries management and marine protected areas (MPAs) as examples, and highlighted regions where a new treaty could add value to ongoing management efforts.



*Kristina Gjerde (IUCN) & Glen Wright (IDDRI)
present options for strengthening regional and sectoral governance.*



John Brincat (European Commission) and Edvard Hviding (Permanent Mission of Palau to the UN) respond to presentations.

Following remarks from **John Brincat** (European Commission) and **Edvard Hviding** (Permanent Mission of Palau to the UN), **Sebastian Unger** (IASS) moderated a lively discussion. Participants considered how a new agreement could build political will and spur State action, the modalities for management in regions without existing bodies or mechanisms, the potential role of a new agreement in facilitating the participation of all States in existing management efforts, and the need for a global treaty with a clear unifying objective.



David Johnson (Seascope Consultants) poses a question.

Session three

The contribution of ongoing processes to strengthening governance of ABNJ

In the final session of the day, a varied panel of speakers, chaired by **Ben Boteler** (IASS), provided insight into ongoing processes that may contribute to efforts to strengthen governance of ABNJ.

Jihyun Lee (CBD Secretariat) described a range of CBD activities aiming to support conservation and sustainable use of biodiversity, including: the process to develop a Strategic Plan for Biodiversity for 2011-2020; the Sustainable Ocean Initiative (SOI), which aims to bring regional and sectoral actors together; and the process to describe ecologically and biologically significant marine areas (EBSAs).



*Jihyun Lee (CBD Secretariat)
discusses CBD initiatives to strengthen biodiversity management.*

Finnian Cheshire (New Zealand Permanent Mission to the UN) described ongoing efforts to advance implementation of SDG 14.6 on reducing and eliminating harmful subsidies through ongoing discussions at the World Trade Organisation (WTO).



*Finnian Cheshire (New Zealand Permanent Mission to the UN)
provides a summary of ongoing WTO fisheries subsidies negotiations.*

Julie Rigaud (IOC-UNESCO) introduced the UN Decade of Ocean Science for Sustainable Development (2021-2030), which aims to renew efforts for global ocean science cooperation, bolster ocean observing systems, deliver best available science to decision makers, and accelerate capacity development and the transfer of marine technology.

Finally, **Renée Sauvé** (Fisheries and Oceans, Canada) introduced the Sustainable Blue Economy Conference to be held in Nairobi, Kenya, in November 2018, the first global conference on the sustainable blue economy that will gather over 4,000 participants to discuss transitioning to a blue economy that is prosperous, inclusive and sustainable.



*Julie Rigaud (IOC-UNESCO)
introduces the UN Decade of Ocean Science for Sustainable Development.*



*Kristina Gjerde (IUCN) asks Jihyun Lee (CBD)
how ongoing initiatives can contribute to treaty negotiations.*

Closing session

In closing, **Abou Bamba** and **Méntor Villagómez Merino** thanked participants for their enthusiasm and expressed their hope that future discussions could help advance efforts in their regions and globally.

Nicola Breier (German Federal Ministry for the Environment, Nature Conservation and Nuclear Safety - BMU) praised participants for the active and interesting discussions and reiterated the support of the German Government for strengthening existing regional and sectoral mechanisms in support of an ambitious new global agreement.

Sebastian Unger thanked participants and expressed his hope that future meetings would build on the collegial atmosphere and interesting discussions.



Nicola Breier (German Federal Ministry for the Environment, Nature Conservation and Nuclear Safety - BMU) and Sébastien Unger provide their concluding remarks.



Sebastian Unger (IASS) and Abou Bamba (Abidjan Convention Secretariat) thank participants for their enthusiasm and discussion.

Agenda

09:30 – 09:45	Opening Session → Guido Genrich, Federal Foreign Office → Abou Bamba, Abidjan Convention Secretariat → Méntor Villagómez Merino, Secretariat of the Permanent Commission of the South Pacific (CPPS) → Sebastian Unger, Institute for Advanced Sustainability Studies (IASS)
09:45 – 10:30	Regional governance of ABNJ: Lessons learnt & challenges <i>Round table chaired by Julien Rochette (Institute for Sustainable Development and International Relations, IDDRI) with:</i> → Mariana Blanco, MarViva Foundation → Richard Cronin, OSPAR Commission → Abou Bamba, Abidjan Convention Secretariat → Ruth Fletcher, UNEP WCMC
10:30 – 11:00	Q&A, discussion
11:00 – 11:30	Coffee Break
11:30 – 12:15	Underpinning a high seas treaty through strong regional and sectoral governance <i>Round table chaired by Sebastian Unger (Institute for Advanced Sustainability Studies, IASS) with:</i> → Kristina Gjerde, International Union for the Conservation of Nature (IUCN) → Glen Wright, Institute for Sustainable Development and International Relations (IDDRI) → John Brincat, European Commission → Edvard Hviding, Scientific Advisor to the Permanent Mission of Palau to the United Nations
12:15 – 13:00	Q&A and Discussion
13:00 – 13:45	Lunch
13:45 – 14:30	The contribution of ongoing processes to strengthening governance of ABNJ <i>Round table chaired by Ben Boteler (Institute for Advanced Sustainability Studies, IASS) with</i> → Jihyun Lee, CBD Secretariat → Finnian Cheshire, New Zealand Permanent Mission to the United Nations → Julie Rigaud, IOC UNESCO → Renée Sauvé, Fisheries and Oceans, Canada
14:30 – 15:15	Q&A and Discussion
15:15 – 15:30	Closure of the Meeting → Nicola Breier, Federal Ministry for the Environment, Nature Conservation and Nuclear Safety (BMU) → Abou Bamba, Abidjan Convention Secretariat → Méntor Villagómez Merino, Secretariat of the Permanent Commission of the South Pacific (CPPS) → Sebastian Unger, Institute for Advanced Sustainability Studies (IASS)

About the STRONG High Seas project

The STRONG High Seas project is a five-year project that aims to strengthen regional ocean governance for the conservation and sustainable use of marine biodiversity in ABNJ in view of the BBNJ negotiations. Working with the Secretariat of the Comisión Permanente del Pacífico Sur (CPPS; Permanent Commission for the South Pacific) and the Secretariat of the West and Central Africa Regional Seas Programme (Abidjan Convention), it brings together key science and policy actors in the Southeast Pacific and Southeast Atlantic regions to develop and propose targeted measures to support the coordinated development of integrated and ecosystem-based management approaches for ocean governance in ABNJ.

The STRONG High Seas project is coordinated by the Institute for Advanced Sustainability Studies (IASS) and implemented together with the Institute for Sustainable Development and International Relations (IDDRI), BirdLife International, the International Ocean Institute (IOI) – Southern Africa, the Universidad Católica del Norte (UCN), WWF Colombia, and WWF Germany.

For more information about the STRONG High Seas project, please visit: <https://www.prog-ocean.org/our-work/strong-high-seas/> or contact: stronghighseas@iass-potsdam.de.

Partners of the STRONG High Seas project:



ABIDJAN CONVENTION
CONVENTION D'ABIDJAN



International Ocean Institute
African Region



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The STRONG High Seas project is part of the International Climate Initiative (IKI; www.international-climate-initiative.com/en/). The Federal Ministry for the Environment, Nature Conservation and Nuclear Safety (BMU) supports this initiative on the basis of a decision adopted by the German Bundestag.